

CHAPTER 54.

An Act to provide for the establishment of a Cattle Fund; for the making of payments and advances to the said fund out of moneys provided by Parliament and out of the Consolidated Fund of the United Kingdom; for the making of payments out of the Cattle Fund to producers of cattle in respect of the sale by them, during a limited period, of certain cattle or carcasses of certain cattle; for the marking of imported cattle; for the appointment of a Cattle Committee; and for purposes connected with the matters aforesaid. [31st July 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For the purposes of this Act there shall be established a fund (which shall be called, and is hereinafter referred to as, “the Cattle Fund”), and that fund shall, subject to such directions as may be given by the Treasury, be administered and controlled by the Minister of Agriculture and Fisheries and the Secretaries of State concerned with agriculture in Scotland and Northern Ireland respectively (hereinafter referred to as “the appropriate Ministers”).

Establish-
ment of,
and pay-
ments to,
Cattle Fund.

(2) The Treasury may, during the financial year ending the thirty-first day of March, nineteen hundred and thirty-five, make, out of the Consolidated Fund of the United Kingdom or the growing produce thereof, advances to the Cattle Fund not exceeding in the aggregate three million pounds, but any advances made under this subsection to the Cattle Fund shall be repaid from that fund to the Exchequer of the United Kingdom before the end of that financial year.

(3) There shall be paid into the Cattle Fund out of moneys provided by Parliament such sums as Parliament may determine.

Payments
out of
Cattle Fund
to producers
of cattle.

2.—(1) Subject to the provisions of this section, the appropriate Ministers may, in accordance with any arrangements approved by them for the purposes of this section, make out of the Cattle Fund payments to producers of cattle in respect of—

- (a) steers, heifers or cow-heifers certified in accordance with the arrangements to conform with a standard prescribed by regulations of the said Ministers; or
- (b) carcases of such steers, heifers or cow-heifers as have been so certified to conform with that standard,

being animals or carcases, as the case may be, which have been sold in the United Kingdom by such producers during a period beginning on such day after the end of August, nineteen hundred and thirty-four, as those Ministers may appoint, and ending on the thirty-first day of March, nineteen hundred and thirty-five.

Regulations made for the purposes of this subsection may prescribe different standards in relation to different descriptions of cattle.

(2) Every payment under this section shall—

- (a) in the case of any live animal, be an amount computed on the weight of the animal as at the time when it was certified for the purposes of the foregoing subsection, at such rate per hundredweight, not exceeding five shillings, as may be specified in an order made by the appropriate Ministers and approved by the Treasury; or
- (b) in the case of any carcase, be an amount computed on the weight of the carcase at such rate per hundredweight, not exceeding nine shillings and fourpence, as may be specified in an order so made and approved as aforesaid;

and such an order as aforesaid may provide for the weight of any animal being determined for the purposes of this section in such manner, and subject to such deduction, as may be prescribed by the order, and may further provide that no certificate shall be issued for

the purposes of this section in respect of any animal weighing less than such weight as may be specified in that behalf in the order.

(3) An application for the issue of a certificate for the purposes of this section in respect of an animal shall not be granted, if it appears to the person whose function it is to entertain the application either that the animal has been castrated after attaining the age of nine months, or that the animal is in milk or is more than five months advanced in pregnancy.

(4) An application for the issue of a certificate for the purposes of this section in respect of an animal imported into the United Kingdom shall not be granted unless it is shown to the satisfaction of the person whose function it is to entertain the application that the animal has been in the United Kingdom for a continuous period of at least three months.

(5) No payment under this section shall be made in respect of the carcase of any animal, unless the carcase has been dressed in accordance with regulations of the appropriate Ministers.

(6) As soon as may be after they have approved any arrangements for the purposes of this section, the appropriate Ministers shall lay particulars of the arrangements before both Houses of Parliament, and any regulations made for the purposes of this section shall, as soon as may be after they are made, be laid before both Houses of Parliament.

(7) Every order under this section shall, as soon as may be after it is made, be laid before the Commons House of Parliament, and if that House, within the next subsequent twenty days on which the House has sat after the order is laid before it, resolves that the order be annulled, the order shall thenceforth be void, but without prejudice to anything previously done thereunder or to the making of a new order.

3.—(1) With a view to ensuring the due making of payments to producers of cattle in accordance with this Act, the appropriate Ministers shall by order provide (subject to such exceptions, if any, as may be specified in the order) for the marking of cattle imported into the United Kingdom, and an order under this section may

Marking of
imported
cattle.

contain such provisions as appear to the appropriate Ministers to be necessary for giving effect to the order :

Provided that an order under this section shall not apply in relation to any cattle imported into the United Kingdom after the end of March, nineteen hundred and thirty-five.

(2) If any person —

- (a) contravenes or fails to comply with any order under this section; or
- (b) with intent to deceive, alters or defaces any mark placed on any animal for the purposes of such an order;

he shall be liable, on summary conviction, to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

(3) An order under this section shall, as soon as may be after it is made, be laid before both Houses of Parliament.

The Cattle
Committee.

4.—(1) The appropriate Ministers shall appoint a Committee (hereinafter referred to as “the Cattle Committee”), whose duty it shall be to advise those Ministers generally in the discharge of their functions under this Act, and to prepare and submit to those Ministers particulars of such arrangements as are mentioned in section two of this Act, and, if those Ministers so direct, to carry into effect any such arrangements approved by them.

(2) The appropriate Ministers may appoint a secretary to the Cattle Committee, and the Committee may employ such officers, agents and servants as those Ministers, with the approval of the Treasury, may determine.

(3) The appropriate Ministers may pay such remuneration to the members of the Cattle Committee and to the secretary, officers, agents and servants of the Committee, and such other expenses of the Committee, as those Ministers, with the approval of the Treasury, may determine.

(4) The expenses incurred by the appropriate Ministers in pursuance of the last foregoing subsection,

and such other expenses as may, with the approval of the Treasury, have been incurred by those Ministers for the purposes of this Act, shall be defrayed out of the Cattle Fund.

5.—(1) For the purposes of this Act—

- (a) a person shall be taken to be a producer of cattle if he is a person whose business it is to keep cattle in the United Kingdom for the purpose of selling them in an improved condition;
- (b) the expression “cow-heifer” means any female bovine animal which has calved, but which has not grown more than six permanent incisor teeth; and
- (c) cattle removed from the Isle of Man into the United Kingdom shall be deemed to be imported into the United Kingdom.

Interpre-
tation, and
provisions
as to orders
and regula-
tions and as
to accounts
of Cattle
Fund.

(2) The power or duty to make an order under any of the provisions of this Act shall be construed as including a power, exercisable in the like manner and subject to the like restrictions and approval, if any, to vary or revoke the order by a subsequent order, and all orders and regulations made for the purposes of this Act shall, notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, be deemed not to be statutory rules to which that section applies.

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(3) The Minister of Agriculture and Fisheries shall prepare, in such form and manner, at such time, and with respect to such period, as the Treasury may direct, an account of receipts into, and payments out of, the Cattle Fund, and the Comptroller and Auditor General shall examine and certify the account and shall lay copies of the account, together with his report thereon, before both Houses of Parliament.

6. This Act may be cited as the Cattle Industry Short title.
(Emergency Provisions) Act, 1934.

